

25STCV06682 25STCV06682

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV06682 Hearing Date: July 29, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

29, 2026

CASE NAME: Steve

Cortez v. General Motors, LLC

CASE NO.: 25STCV06682

MOTION

FOR STAY OF PROCEEDINGS

MOVING PARTY: Plaintiff

Steve Cortez

RESPONDING PARTY(S): Defendant General Motors, LLC

REQUESTED RELIEF:

1. An

order to stay all proceedings in this matter pending the Court of Appeal's

decision in Price v. General Motors

(B353231).

TENTATIVE RULING:

1. Motion

for stay of proceedings is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 10, 2025, Plaintiff Steve Cortez (Plaintiff) filed a complaint against Defendant General Motors, LLC (GM) with causes of action for: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment.

According to the complaint, Plaintiff purchased a 2017 Chevrolet Colorado that allegedly developed engine, transmission, and electrical defects within the warranty period, including stuttering on acceleration, check engine warnings, and persistent drivability and safety issues. Plaintiff alleges that GM failed to repair the defects after multiple attempts, did not provide the required repurchase or replacement remedy under the Song Beverly Act, and that the vehicle's value became de minimis. Plaintiff further contends that GM knew of a dangerous 3.6L engine defect, concealed it from consumers, and authorized only superficial repairs that masked but did not fix the underlying problem.

On October 28, 2025, Plaintiff filed the operative first amended complaint (FAC) against GM with the same causes of action.

On December 1, 2025, GM filed an answer.

On May 1, 2026, GM filed a motion for judgment on the pleadings which the court GRANTED as to the first, second, third, and fourth causes of action without leave to amend and DENIED as to the fifth cause of action.

On May 27, 2026, Plaintiff filed the instant motion for order to stay proceedings. On July 16, 2026, GM filed an opposition.

LEGAL STANDARD:

A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141.) The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the cause on its docket with the economy of time and effort for itself, for counsel, and for litigants. (Id.) Trial courts generally have inherent power to stay proceedings in the interest of justice and to promote judicial efficiency. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

ANALYSIS:

Plaintiff contends the court should exercise its inherent authority to issue a stay pending resolution of the appeal in Price v. General Motors pending in the Second District Court of Appeal because it will determine a novel issue splitting the trial courts concerning GM's post-filing election into the Song-Beverly Act's new procedural regime as retroactively barring on-filed complaints.

GM argues a stay is not warranted because: (1) it is moot as the only remaining claim is not affected by the Court of Appeal case; (2) the motion does not comply with the CRC; (3) the balance of equities does not favor a stay; and (4) this motion is a delay tactic.

Here, a discretionary stay is not warranted. First, Plaintiff seeks a stay for an unknown period of time due to an appeal pending in an adjacent matter. This prejudices GM who is still litigating the surviving fraud-concealment claim. Second, Plaintiff is free to file a motion for reconsideration after the Court of Appeal rules, as needed. Therefore, the court is not inclined to exercise its discretion to issue a stay.

Accordingly, the court DENIES Plaintiff's motion for stay of proceedings.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for stay of proceedings is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 29, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court